

SF 30 BLOCK 14 CONTINUATION PAGE**SUMMARY OF CHANGES**

Block 14 (Description of Amendment/Modification): The following revisions have been made in response to industry questions and as a result of the contract writing system updates for provisions and clauses.

1. 52.212-1, Table 2: Proposal Volumes, has been revised to update the file name for Volume II: Factor 2.
2. 52.212-1, Table 2: Proposal Volumes, has been revised to increase the page limits for Volume I: Factor I - Challenge Scenario 1a and Volume I: Factor 1 - Challenge Scenario 1b from 8 pages to 10 pages.
3. 52.212-1, Section 2.3 provided a due date and time for questions specific to revisions made in either Amendment 0001 and 0002.
4. 52.212-1, VOLUME III: CONTRACT DOCUMENTS, Section (2) has been revised to provide that the proposal is valid 180 calendar days from the date specified for receipt of offers.
5. Revised PWS Section 6 Transition-out Period and Exhibit A005 Transition-Out Plan CDRL to remove contract requirement.
6. Revised Special Contract Requirement, Addendum 1 - Organizational Conflict of Interest (OCI) to move this requirement to the task order level and remove the last sentence of Section V. Notification/Mitigation.
7. Removed 52.219-4 due to not evaluating price at the IDIQ level.
8. Added clause 52.233-1 - Alternate I now available in the contract writing system.
9. Added provision 252.204-7008 now available in the contract writing system.
10. Revised provision titles 52.212-1 and 52.212-2 as now available in the contract writing system.

All other terms and conditions remain unchanged.

Special Contract Requirements**Header Miscellaneous Text (Modified):****SOFA Contract Clause****INVITED CONTRACTOR OR TECHNICAL REPRESENTATIVE STATUS UNDER U.S. - REPUBLIC OF KOREA (ROK)**

Invited Contractor (IC) and Technical Representative (TR) status shall be governed by the U.S.- ROK Status of Forces Agreement (SOFA) as implemented by United States Forces Korea (USFK) Reg 700-19, which can be found under the "publications" tab on the US Forces Korea homepage <http://www.usfk.mil>

(a) Definitions. As used in this clause--

"U.S. - ROK Status of Forces Agreement" (SOFA) means the Mutual Defense Treaty between the Republic of Korea and the U.S. of America, Regarding Facilities and Areas and the Status of U.S. Armed Forces in the Republic of Korea, as amended.

"Combatant Commander" means the commander of a unified or specified combatant command established in accordance with 10 U.S.C. 161. In Korea, the Combatant Commander is the Commander, United States Pacific Command.

"United States Forces Korea" (USFK) means the subordinate unified command through which US forces would be sent to the Combined Forces Command fighting components.

"Commander, United States Forces Korea" (COMUSK) means the commander of all U.S. forces present in Korea. In the Republic of Korea, COMUSK also serves as Commander, Combined Forces Command (CDR CFC) and Commander, United Nations Command (CDR UNC).

"USFK, Assistant Chief of Staff, Acquisition Management" (USFK/FKAQ) means the principal staff office to USFK for all acquisition matters and administrator of the U.S.-ROK SOFA as applied to US and Third Country contractors under the Invited Contractor (IC) and Technical Representative (TR) Program (USFK Reg 700-19).

"Responsible Officer (RO)" means a senior DOD employee (such as a military E5 and above or civilian GS-7 and above), appointed by the USFK Sponsoring Agency (SA), who is directly responsible for determining and administering appropriate logistics support for IC/TRs during contract performance in the ROK.

(b) IC or TR status under the SOFA is subject to the written approval of USFK, Assistant Chief of Staff, Acquisition Management (FKAQ), Unit #15289, APO AP 96205-5289.

(c) The contracting officer will coordinate with HQ USFK/FKAQ, IAW Revolutionary Federal Acquisition Regulation (FAR) Overhaul (RFO) 25.8, and USFK Reg 700-19. FKAQ will determine the appropriate contractor status under the SOFA and notify the contracting officer of that determination.

(d) Subject to the above determination, the contractor, including its employees and lawful dependents, may be accorded such privileges and exemptions under conditions and limitations as specified in the SOFA and USFK Reg 700-19. These privileges and exemptions may be furnished during the performance period of the contract, subject to their availability and continued SOFA status. Logistics support privileges are provided on an as-available basis to properly authorized individuals. Some logistics support may be issued as Government Furnished Property or transferred on a reimbursable basis.

(e) The contractor warrants and shall ensure that collectively, and individually, its officials and employees performing under this contract will not perform any contract, service, or other business activity in the ROK, except under U.S. Government contracts and that performance is IAW the SOFA.

(f) The contractor's direct employment of any Korean-National labor for performance of this contract shall be governed by ROK labor law and USFK regulation(s) pertaining to the direct employment and personnel administration of Korean National personnel.

(g) The authorities of the ROK have the right to exercise jurisdiction over invited contractors and technical representatives, including contractor officials, employees and their dependents, for offenses committed in the ROK and punishable by the laws of the ROK. In recognition of the role of such persons in the defense of the ROK, they will be subject to the provisions of Article XXII, SOFA, related Agreed Minutes and Understandings. In those cases in which the authorities of the ROK decide not to exercise jurisdiction, they shall notify the U.S. military authorities as soon as possible. Upon such notification, the military authorities will have the right to exercise jurisdiction as is conferred by the laws of the U.S.

(h) Invited contractors and technical representatives agree to cooperate fully with the USFK Sponsoring Agency (SA) and Responsible Officer (RO) on all matters pertaining to logistics support and theater training requirements. Contractors will provide the assigned SA prompt and accurate reports of changes in employee status as required by USFK Reg 700-19.

(i) Theater Specific Training. Training Requirements for IC/TR personnel shall be conducted in accordance with USFK Reg 350-2 Theater Specific Required Training for all Arriving Personnel and Units Assigned to, Rotating to, or in Temporary Duty Status to USFK. IC/TR personnel shall comply with requirements of USFK Reg 350-2.

(j) Except for contractor air crews flying Air Mobility Command missions, all U.S. contractors performing work on USAF classified contracts will report to the nearest Security Forces Information Security Section for the geographical area where the contract is to be performed to receive information concerning local security requirements.

(k) Invited Contractor and Technical Representative status may be withdrawn by USFK/FKAQ upon:

- (1) Completion or termination of the contract.
- (2) Determination that the contractor or its employees are engaged in business activities in the ROK other than those pertaining to U.S. armed forces.
- (3) Determination that the contractor or its employees are engaged in practices in contravention to Korean law or USFK regulations.

(l) It is agreed that the withdrawal of invited contractor or technical representative status, or the withdrawal of, or failure to provide any of the privileges associated therewith by the U.S. and USFK, shall not constitute grounds for excusable delay by the contractor in the performance of the contract and will not justify or excuse the contractor defaulting in the performance of this contract. Furthermore, it is agreed that withdrawal of SOFA status for reasons outlined in USFK Reg 700-19, Section II, paragraph 6 shall not serve as a basis for the contractor filing any claims against the U.S. or USFK. Under no circumstance shall the withdrawal of SOFA Status or privileges be considered or construed as a breach of contract by the U.S. Government.

(m) Support.

(1) Unless the terms and conditions of this contract place the responsibility with another party, the COMUSK will develop a security plan to provide protection, through military means, of Contractor personnel engaged in the theater of operations when sufficient or legitimate civilian authority does not exist.

(2)

(i) All Contractor personnel engaged in the theater of operations are authorized resuscitative care, stabilization, hospitalization at level III military treatment facilities, and assistance with patient movement in emergencies where loss of life, limb, or eyesight could occur. Hospitalization will be limited to stabilization and short-term medical treatment with an emphasis on return to duty or placement in the patient movement system.

(ii) When the Government provides medical or emergency dental treatment or transportation of Contractor personnel to a selected civilian facility, the Contractor shall ensure that the Government is reimbursed for any costs associated with such treatment or transportation.

(iii) Medical or dental care beyond this standard is not authorized unless specified elsewhere in this contract.

(3) Unless specified elsewhere in this contract, the Contractor is responsible for all other support required for its personnel engaged in the theater of operations under this contract.

(n) Compliance with laws and regulations. The Contractor shall comply with, and shall ensure that its personnel supporting U.S Armed Forces in the Republic of Korea as specified in paragraph (b)(1) of this clause are familiar with and comply with, all applicable--

- (1) United States, host country, and third country national laws;
- (2) Treaties and international agreements;
- (3) United States regulations, directives, instructions, policies, and procedures; and
- (4) Orders, directives, and instructions issued by the COMUSK relating to force protection, security, health, safety, or relations and interaction with local nationals. Included in this list are force protection advisories, health advisories, area (i.e. "off-limits"), prostitution and human trafficking and curfew restrictions.

(o) Vehicle or equipment licenses. IAW USFK Regulation 190-1, Contractor personnel shall possess the required licenses to operate all vehicles or equipment necessary to perform the contract in the theater of operations. All contractor employees/dependents must have either a Korean driver's license or a valid international driver's license to legally drive on Korean roads.

(p) Evacuation.

(1) If the COMUSK orders a non-mandatory or mandatory evacuation of some or all personnel, the Government will provide assistance, to the extent available, to United States and third country national contractor personnel.

(2) Non-combatant Evacuation Operations (NEO).

(i) The contractor shall designate a representative to provide contractor personnel and dependents information to the servicing NEO warden as required by direction of the Responsible Officer.

(ii) If contract period of performance in the Republic of Korea is greater than six months, non emergency essential contractor personnel and all IC/TR dependents shall participate in at least one USFK sponsored NEO exercise per year.

(q) Next of kin notification and personnel recovery.

(1) The Contractor shall be responsible for notification of the employee-designated next of kin in the event an employee dies, requires evacuation due to an injury, or is missing, captured, or abducted.

(2) In the case of missing, captured, or abducted contractor personnel, the Government will assist in personnel recovery actions in accordance with DOD Directive 2310.2, Personnel Recovery.

(3) IC/TR personnel shall accomplish Personnel Recovery/Survival, Evasion, Resistance and Escape (PR/SERE) training in accordance with USFK Reg 525-40, Personnel Recovery Procedures and USFK Reg 350-2 Theater Specific Required Training for all Arriving Personnel and Units Assigned to, Rotating to, or in Temporary Duty Status to USFK.

(r) Mortuary affairs. Mortuary affairs for contractor personnel who die while providing support in the theater of operations to U.S. Armed Forces will be handled in accordance with DOD Directive 1300.22, Mortuary Affairs Policy and Army Regulation 638-2, Care and Disposition of Remains and Disposition of Personal Effects.

(s) USFK Responsible Officer (RO). The USFK appointed RO will ensure all IC/TR personnel complete all applicable training as outlined in this clause.

(END)

ADDENDUM 1 - Organizational Conflict of Interest

This Addendum will be invoked at the task order level when applicable.

This contract is likely to introduce biased ground rules, hinder objectivity, and create unequal access to information.

To mitigate potential conflicts of interest, the Contractor, by mutual agreement, will be ineligible to perform (as a contractor, subcontractor, or team member) on any future contracts or agreements with our [specific agency partners or subordinate organizations will be identified at the task order level] for the duration of this contract and for twelve (12) months following its conclusion. This exclusion does not apply to follow-on actions that directly continue the effort under this contract.

For more information on Organizational Conflicts of Interest, please refer to RFO 9.5.

I. Definitions:

Unless otherwise specified in this provision, the terms used in this provision are defined in the RFO and DFARS RFO Class Deviation, as applicable.

Contractor - For the purposes of this addendum, the term "contractor" means the contractor, its subsidiaries and affiliates, subcontractors, vendors, consultants, joint ventures, contractor teaming arrangements, involving the contractor, and any entity with which the contractor may hereafter merge or affiliate and any other successor or assignee of the contractor.

II. Warranty Against Conflicts of Interest.

The Contractor warrants, by signing this solicitation or any subsequent contract, that it will not perform DHMS related work for similar projects under other government contracts, as described above. In the event of a breach of this warranty, the Government may, at its sole discretion:

- Terminate this contract for cause. The Contractor shall not be entitled to any reimbursement of costs incurred or payment of fees under this agreement. Additionally, the Contractor shall not be able to allocate or charge any such costs, directly or indirectly, to any other government contract.
- Pursue any other remedies available under law or regulation.

III. Non-Disclosure.

To ensure the protection of other contractors' proprietary information, the Contractor shall enter into a Mutual Non-Disclosure Agreement (NDA) [see DHA NDA Form 49], with the Government, which is provided at Attachment 18. Ask your Contracting Officer for a copy of DHA NDA Form 49 if you do not have access to the latest version. This NDA will:

- a. Mirror the Level of Protection afforded by Government employees handling such information.
- b. Require Contractor Training. The Contractor must train their employees on proper handling of this confidential information.
- c. Require employees to sign acknowledging the sensitive nature of the information and the potential consequences of unauthorized use.
- d. Give Government Review and Access Control. The Government will determine whether a bona fide need exists for individual employees to access this information. Only authorized personnel will be granted access.
- e. Limit Dissemination. Contractor employees must be further trained to understand that unauthorized disclosure (to other employees or government personnel) violates their company NDAs.

IV. Associate Agreements.

If a contractor conditions access to their proprietary information, all entities may be required to execute non-disclosure, non-compete, or business associate agreements directly with other contractors prior to obtaining access to proprietary information, as required.

V. Notification/Mitigation.

If the Contractor identifies an actual or potential Organizational Conflict of Interest (OCI) that has not already been adequately disclosed and resolved (or waived in accordance with RFO 9.503), the Contractor shall make a prompt and full disclosure in writing to the Contracting Officer. This disclosure shall include a description of the OCI and the action(s) the Contractor has taken, or proposes to take, in order to resolve the conflict. The Contractor may also identify actions the Government may take to address or resolve the OCI.

VI. Flow Down.

The Contractor shall include the substance of this addendum, including this paragraph (VII), in all subcontracts. The terms "Contractor" and "Contracting Officer" shall be appropriately modified to reflect the change in parties and to preserve the Government's rights. If the Contractor believes, based on the circumstances of a particular subcontract, that flow down is not in the Government's best interest, the Contractor shall notify and receive approval from the Contracting Officer to waive the flow down on a case-by-case-basis.

VII. Disclosure.

The Contractor is notified that future solicitations issued by Contracting Division - Defense Healthcare Management Systems will require disclosure of work performed under this contract as a matter of compliance. Further, the Contractor agrees that it will notify any potential Prime on future solicitations issued by Contracting Division - Defense Healthcare Management Systems, prior to executing any teaming or subcontracting arrangements established to respond to any such solicitation.

VIII. Termination of Restraint.

The restraints of this addendum expire twelve (12) months after performance under this contract ceases.

(END)

ADDENDUM 2 - Limited Disclosure of Contractor Confidential Business Information

Due to the size and complexity of DHMS, the Government has supplemented its staff with support contractors. For those contractors to fully engage in DHMS activities, the DHMS will be required to release some confidential business information to the support contractor. This addendum informs the contractors of these circumstances and requires commercially consistent safeguards and protections for all parties relative to the sharing of this information.

I. Definitions:

"Confidential Business Information," (Information) as used in this addendum, includes any financial, business, economic, or technical data, including software or its documentation, regardless of form or storage method (physical, electronic, graphical, photographic, written). Information qualifies as confidential if it meets all three conditions:

- a. The owner has taken reasonable steps to keep it secret, and
- b. It has independent economic value because it is not generally known or easily obtainable by the public, and
- c. It includes technical data as defined in DFARS RFO Class Deviation 252.227-7990 and computer software/documentation as defined in DFARS RFO Class Deviation 227.7101.

II. Limited Release of Information.

The government may share Information submitted by the contractor or its subcontractors with certain individuals employed by support contractors and their subcontractors involved in this agreement. This may include information typically considered confidential. By submitting a proposal or signing this agreement, the contractor and its subcontractors agree to this limited release, but only for the purposes outlined in Section IV of this addendum.

III. Permitted Sharing of Information.

Circumstances where the Government may release the contractor's or subcontractors' Information include the following:

- a. Agreement Administration Support:** With employees of other contractors and subcontractors who help the government manage and process information and documents related to agreements, such as file management and agreement closeout.
- b. Accounting Support:** With employees of other contractors and subcontractors who assist the government with accounting tasks, including access to Invoice/Voucher.
- c. Technical and Administrative Support:** With employees of other contractors and subcontractors who help the government with technical and administrative tasks, such as monitoring agreement progress and providing financial oversight.
- d. Project/Program Management Support:** With employees of other contractors and subcontractors who advise or provide technical assistance to support the government's management and oversight of its projects and programs.

IV. Protections for Contractor Information.

The government understands its obligation to protect the contractor and its subcontractors from potential harm caused by sharing Confidential Business Information. The government will only allow the limited information sharing described in sections IV(a), IV(b), IV(c), and IV(d) under the following conditions:

- a. Need-to-Know:** The Government determines that access is required by other contractors and their subcontractors to perform the tasks described in paragraphs (IV)(a), (IV)(b), (IV)(c), and (IV)(d);
- b. Restricted Access:** Access to Information is restricted to individuals with a bona fide need to possess;
- c. Non-Disclosure Agreements:** Contractors and subcontractors with access to the Information must agree, through their contracts or separate corporate non-disclosure agreements, to protect the information with the same level of care used by government employees. These agreements must require the contractors and subcontractors to:
 - i. Train their employees on how to properly handle the Information.
 - ii. Have employees sign company non-disclosure agreements acknowledging the sensitivity of the Information and the potential consequences of unauthorized use. The government must receive copies of these employee agreements.
- d. Limited Use:** Contractors and their subcontractors performing the tasks described in sections IV(a) through (d) have agreed under their agreement or a separate non-disclosure agreement to not use the Information for any purpose other than performing the tasks described in paragraphs IV(a) through (d);
- e. Technical Data Protection:** Contractors and subcontractors with access to technical data, computer software, or computer software documentation must have a Use and Non-Disclosure Agreement as specified in DFARS RFO Class Deviation 227.7103-7; and,
- f. Notification:** Before releasing Information to non-government personnel for the tasks described in sections IV(a) through (d), the government will provide the contractor with a list of the companies receiving access and a point of contact for those entities. The government may also provide copies of any Non-Disclosure Agreements upon request.
- g. Freedom of Information Act (FOIA)** This addendum does not affect the government's responsibilities under the Freedom of Information Act.
- h. Subcontractor Inclusion** The contractor agrees to include this addendum, and require its inclusion, in all subcontracts at any tier that involve the furnishing of Confidential Business Information.

(END)

ADDENDUM 3 - Pre-Award Identification and Assertion of Restrictions on Commercial Technical Data and Commercial Computer Software

I. Definitions:

Unless otherwise specified in this provision, the terms used in this provision are defined in the RFO and DFARS RFO Class Deviation, as applicable.

- a. Third-party** is any party other than the Government and the Contractor, such as subcontractors.
- b. Third-party License** is a license not executed directly between the Government and the Contractor.

II. Identification and Assertion of Restrictions.

The Offeror shall refrain from delivering to the Government any commercial technical data (TD), commercial computer software (CS), or commercial computer software documentation (CSD), including any from a third party, if it bears restrictive markings or is otherwise subject to restrictions on access, use, modification, reproduction, release, performance, display, or disclosure. However, if such data or software falls under these restrictions, it must be clearly identified in accordance with the following requirements:

- a. Pre-Award Identification and Assertion.**

The Offeror shall identify all technical data, commercial computer software, and commercial computer software documentation, including third-party that it proposes will be delivered or otherwise provided throughout the entire contract (including all Delivery/Task Orders, if issued, and Option CLINs, if exercised) with rights more restrictive than Unlimited Rights as follows:

- i. The Offeror shall identify and assert any restrictions for all commercial technical data, commercial computer software, and commercial computer software documentation using the format provided in the table located in section iv below.
- ii. An Offeror's failure to submit, complete, or sign the identification and assertions required by this provision with its offer may render the offer ineligible for award.
- iii. If the Offeror is awarded a contract, the assertions identified in this provision will be listed in an Attachment to that Contract.

b. Copies of Commercial Licenses.

The Offeror shall provide copies of all commercial license(s) to commercial technical data, commercial computer software, or commercial computer software documentation, including third party licenses, that the Offeror proposes to deliver under this contract. The Government will review the licenses to ensure that the license terms are consistent with the federal procurement law and meet the Government program's user needs as defined in the sub-paragraphs below. All such commercial licenses will be made part of an Attachment to the Contract at award. If the Offeror intends to deliver commercial technical data under the terms of DFARS RFO Class Deviation 252.227-7990, Technical Data-Commercial Products and Commercial Services instead of its own commercial license, the Offeror shall include DFARS RFO Class Deviation 252.227-7990 in the Pre-Award table found in the table located in section iv below.

- i. Typical licensing terms that are inconsistent with federal procurement law can include, but are not limited to:

1. **Jurisdiction and venue** - must be Federal law and venue,
2. **Indemnification of vendor and automatic renewals** - Anti-Deficiency Act violation,
3. **Order of Precedence** - Contract will take precedence over license,
4. **Dispute resolution** - disputes must be in accordance with Disputes clause in Contract,
5. **Injunctive relief** - no injunctive relief against the Government is available, per 28 USC (S)1498(b).
6. This list is not all-inclusive but is intended to convey the most common license terms that are problematic to the Government and that must be resolved prior to award.

- ii. Regarding the Government program's user needs for technical data and computer software delivered under this contract, the Government will need the rights to use, modify, release, display, disclose and distribute commercial computer software and commercial technical data associated with interface deliverables and commercial technical data associated with training deliverables outside of the Government for DHMS Purposes, but only under conditions that prohibit any further distribution by the third party recipient for any purpose. "PEO DHMS Purposes" is defined in the clause IP License Agreement. When exercising such rights the Government intends to use the Non-Disclosure Agreement found at DFARS RFO Class Deviation 227.7103-7, Non-Disclosure Agreement, or utilize substantially similar language incorporated in the recipient's contract with the Government.

- iii. If the Offeror intends to use and deliver to the Government third party commercial TECHNICAL DATA, COMMERCIAL COMPUTER SOFTWARE, or COMMERCIAL COMPUTER SOFTWARE DOCUMENTATION in the performance of the contract, the Offeror shall list such commercial TECHNICAL DATA, COMMERCIAL COMPUTER SOFTWARE, or COMMERCIAL COMPUTER SOFTWARE DOCUMENTATION in paragraph (f). The Offeror shall ensure the license addresses the Government criteria in paragraph (d) and its sub-paragraphs.

c. Use of Commercial Computer Software Without Delivery.

The Government treats Open Source Software (OSS) as a category of commercial computer software. If the Offeror proposes to deliver OSS while performing the Contract, the Contractor shall follow the same procedures prescribed in this provision for commercial computer software. Additionally, if the Offeror proposes to use, but not deliver, commercial computer software (including OSS), the Contractor must ensure that such use does not: (i) create, or purport to create, any Government distribution obligations with respect to the computer software deliverables, or (ii) grant, or purport to grant, to any third party any rights to or immunities under Government intellectual property or Government data rights to the Government computer software deliverables. Finally, if the Offeror proposed to use, but not deliver, commercial computer software that is not OSS, the Offeror shall state whether the Government will need such commercial computer software for the Government's DHMS Purposes.

d. Table Format for Identification and Assertion of Restrictions.

The Contractor shall identify all commercial TECHNICAL DATA, COMMERCIAL COMPUTER SOFTWARE, and COMMERCIAL COMPUTER SOFTWARE DOCUMENTATION as follows:

Identification of Commercial Technical Data/Computer Software (Including Open Source Software) Use and Modifications

Commercial Technical Data/ Computer Software Title, Version #, and License*	Technical Use/ Implementing Approach **	If OSS, Was OSS modified by Contractor? ***	Name of Contractor, including third parties, asserting restrictions****

Enter "none" when all data or software will be submitted without restrictions.

* For commercial technical data (other than computer software documentation) related to items, components, or processes developed at private expense, identify both the deliverable technical data (by CDRL, if applicable) and each such items, component, or process. For computer software or computer software documentation identify the computer software or computer software documentation (by CDRL, if applicable). The complete title and version number of the computer software shall be listed. If Open Source Software (OSS), the OSS license and version number shall be listed. If a version number is not available, the Contractor shall state no version number. If commercial technical data is being delivered under the terms of DFARS RFO Class Deviation 252.227-7990, then DFARS 252.227-7990 shall be listed. If the OSS was downloaded from a website, the website address shall also be provided. Enter none if all commercial technical data or commercial computer software will be submitted without restrictions.

** The functionality of the commercial computer software shall be described, as well as where it is being used within the larger computer software deliverable (if applicable).

*** If OSS is being used, the Offeror shall state whether it has modified the OSS.

**** Corporation, individual, or other person as appropriate.

(END)

ADDENDUM 4 - IP License Agreement

I. Definitions:

Unless otherwise specified in this addendum, the terms used in this addendum are defined in the RFO and DFARS RFO Class Deviation as applicable.

- a. AGREEMENT, means this License AGREEMENT for DHMS IP, as embodied in this addendum, and all amendments/modifications and supplements thereto.
- b. CONTRACT, means contract number [HT003826DXXXX]*.
- c. CS, means DHMS IP that is computer software.
- d. IP, means intellectual property embodied in the form of Technical Data, Computer Software, trade secrets, copyrights, or patents. For purposes of this AGREEMENT, IP does not include knowhow or other unrecorded forms of proprietary knowledge.
- e. PEO DHMS, means the Program Executive Office - Defense Healthcare Management Systems, its subordinate Programs and Projects, and its federal partners, including but not limited to the Federal Electronic Health Record Management (FEHRM) Office, the Department of Veterans Affairs, and the United States Coast Guard, and any other partners that are added during performance of this agreement.
- f. PEO DHMS IP, means
 - i. Noncommercial Technical Data and Computer Software that is listed in proposals for notifications submitted or issued under the CONTRACT, and incorporated in the resulting CONTRACT, with other than Government Purpose Rights (GPR);
 - ii. Commercial Technical Data and Computer Software listed in proposals for notifications submitted or issued under the CONTRACT, and incorporated in the resulting CONTRACT.
 - iii. Does not include
 - 1. any Technical Data and Computer Software that is not listed in the CONTRACT (which must be delivered with Unlimited Rights);
 - 2. commercial Computer Software not listed in the CONTRACT; or
 - 3. any Trademarks or Service Marks owned or controlled by CONTRACTOR.
- g. PEO DHMS Purposes means purposes of:
 - i. Documenting procedures and methodologies utilized within PEO DHMS,
 - ii. Training required to implement new processes and transform culture, as well as to indoctrinate new employees and contractors to PEO DHMS standard practices.
- h. SPECIFICALLY NEGOTIATED LICENSE RIGHTS, means the rights to:
 - i. Access, use, modify, reproduce, release, perform, display, or disclose PEO DHMS IP within the GOVERNMENT without restriction; and,
 - ii. Subject to the terms of this AGREEMENT, release, distribute or disclose PEO DHMS IP outside the GOVERNMENT and authorize persons to whom release, or disclosure has been made to use, modify, reproduce, release, perform, display, or disclose the software or documentation for PEO DHMS PURPOSES.
- i. TECHNICAL DATA, means PEO DHMS IP that is technical data that includes Computer Software documentation.

II. Reference.

- a. DFARS RFO Class Deviation 252.227-7989, Rights in Technical Data--Other Than Commercial Products and Commercial Services, as applicable
- b. DFARS RFO Class Deviation 252.227-7990, Technical Data-Commercial Products and Commercial Services, as applicable
- c. DFARS RFO Class Deviation 252.227-7992, Identification and Assertion of Use, Release, or Disclosure Restrictions
- d. DFARS RFO Class Deviation 252.227-7997, Validation of Asserted Restrictions

III. Grant of Rights.

- a. Subject to the terms and conditions of this AGREEMENT, CONTRACTOR grants SPECIFICALLY NEGOTIATED LICENSE RIGHTS in the PEO DHMS IP to the GOVERNMENT.
- b. CONTRACTOR shall not assert patent rights, trade secret protections, data rights, or any form of intellectual property protection, either against GOVERNMENT or against third parties, which would limit the GOVERNMENT's full exercise of its SPECIFICALLY NEGOTIATED LICENSE RIGHTS in the PEO DHMS IP.
- c. The GOVERNMENT shall have Unlimited Rights in all other Technical Data and Computer Software (other than the PEO DHMS IP as listed above) that have been delivered under the CONTRACT, unless data rights on such Technical Data and Computer Software has been previously asserted in provision a data rights assertions list that complies with DFARS RFO Class Deviation Clause 252.227-7992, Identification and Assertion of Use, Release, or Disclosure Restrictions.

d. The GOVERNMENT shall have the rights to use, modify, reproduce, perform, display, release, or disclose in whole or in part, in any manner, and for any purpose whatsoever, and to have or authorize others to do so any commercial Technical Data or Computer Software (other than PEO DHMS IP) that is delivered under the CONTRACT, unless that commercial Technical Data/Computer Software is not PEO DHMS IP, and is listed in a task order (as modified if post-award assertions are accepted by the Government) with license terms that are consistent with federal procurement law.

IV. Title.

a. The GOVERNMENT acknowledges that title to and ownership of all intellectual property rights in the PEO DHMS IP are and shall remain with CONTRACTOR and its licensors. The GOVERNMENT acquires only the rights to the PEO DHMS IP as defined herein and in accordance with this AGREEMENT and does not acquire any ownership rights or title in or to the PEO DHMS IP or that of CONTRACTOR's licensors. Accordingly, the GOVERNMENT shall:

- i. not alter, publish, republish, perform, distribute, assign, sublicense, sell, adapt, lease, rent, reverse compile, reverse engineer, reverse assemble, transmit, display, decompile, translate, or use the PEO DHMS IP other than as expressly permitted by this AGREEMENT;
- ii. take appropriate action by instruction, agreement, or otherwise, to ensure that the PEO DHMS IP are used solely in the manner permitted under this AGREEMENT;
- iii. act promptly to prevent any breach hereof of the Grant of Rights by any of its employees, agents, or contractors; and,
- iv. immediately notify CONTRACTOR of any material violation of this Grant of Rights in this AGREEMENT.

V. Marking Requirements.

a. CONTRACTOR shall mark all PEO DHMS IP delivered under the AGREEMENT as follows:

Special License Rights - The Government's rights to use, modify, reproduce, release, perform, display, or disclose this technical data/computer software are restricted by Contract No. HT003826DXXXX*. Any reproduction of technical data or portions thereof marked with this legend must also reproduce the markings.

b. CONTRACTOR may also place copyright notices on such Technical Data/Computer Software in the following format: "(c) YYYY, CONTRACTOR." The GOVERNMENT will not remove any copyright notices from the PEO DHMS IP, provided the copyright notice is in the format prescribed in this section. However, the CONTRACTOR may not add any additional language to the copyright notice (such as "All Rights Reserved", for example) that could cause confusion to future end users as to the scope of SPECIFICALLY NEGOTIATED LICENSE RIGHTS in the PEO DHMS IP in any copyright notice placed on PEO DHMS IP delivered under the CONTRACT with SPECIFICALLY NEGOTIATED LICENSE RIGHTS. The GOVERNMENT shall have the rights to remove such language without notice to CONTRACTOR, and at CONTRACTOR's expense.

VI. Disputes.

a. Marking Disputes.

- i. Any disputes regarding CONTRACTOR's or any third party's markings of PEO DHMS IP under this AGREEMENT, other than as agreed to in Section V, shall be addressed in accordance with the clause DFARS RFO Class Deviation 252.227-7997 ("Validation of Asserted Restrictions"), as applicable.
- ii. If unjustified or nonconforming third-party markings are found in PEO DHMS IP, CONTRACTOR agrees (at its cost) to:
 1. obtain written permission from the third party to allow the GOVERNMENT to remove or ignore the marking (provided the GOVERNMENT uses the applicable PEO DHMS IP in accordance with this AGREEMENT); or,
 2. modify the PEO DHMS IP by replacing it with other PEO DHMS IP that is at least functionally equivalent to the PEO DHMS IP at issue, and that is not marked with third party markings. In cases where the PEO DHMS IP is modified and/or replaced, the GOVERNMENT shall be afforded a reasonable opportunity to transition to the modified/replacement PEO DHMS IP before discontinuing use of the PEO DHMS IP containing the third-party markings.
- iii. Other Disputes Not Related to Markings.
All other disputes arising under this AGREEMENT shall be governed by the Disputes clause in the CONTRACT.

VII. Representations, Warranties, and Indemnification.

a. CONTRACTOR represents and warrants with respect to the PEO DHMS IP that it has the corporate power to extend the rights in this AGREEMENT, and that it has not made and will not make any commitments to others that are inconsistent with or in derogation of such rights.

b. CONTRACTOR represents that as of the date of the AGREEMENT, the PEO DHMS IP that is CS is free of reasonably detectable computer viruses, self-help code and unauthorized code. "Self-help code" means any back door, time bomb, drop dead device or other software routine designed to disable a computer program automatically with the passage of time or under the positive control of anyone other than GOVERNMENT. "Unauthorized code" means any virus, trojan horse, worm or other software routines or hardware designed to permit unauthorized access, to disable, erase or otherwise harm software, hardware, or data or to perform any other such actions.

c. CONTRACTOR agrees to:

- i. defend the GOVERNMENT and its officers, employees, and authorized contractors against any claim by a third-party claimant alleging infringement of any United States patent, copyright, or trade secret arising out of GOVERNMENT's use of PEO DHMS IP consistent with the license grant hereunder (each, a "third-party claim"), and
- ii. pay all expenses, damages, judgments and costs (including any reasonable attorney fees, collectively, the "losses"), that a court finally awards against GOVERNMENT or its authorized agents or that are included in a negotiated settlement approved by CONTRACTOR, provided, that, GOVERNMENT promptly notifies CONTRACTOR in writing of the alleged claim; cooperates with CONTRACTOR in the defense of the third-party claim, at CONTRACTOR's expense; and allows CONTRACTOR to control the defense and any related settlement negotiations for the third-party claim. CONTRACTOR's duties of defense and indemnification are limited to infringements that are due to CONTRACTOR's actions or that CONTRACTOR knew or should have known about as of the award date of the CONTRACT.

d. CONTRACTOR has no obligation to defend or indemnify GOVERNMENT against any claim arising from or related to:

- i. PEO DHMS IP that has been altered by the Government or another contractor after delivery by the CONTRACTOR; and
 - ii. use of the PEO DHMS IP in combination with other hardware or software when the claim is based on the combination.
- e. If a third-party claim is made or appears likely to be made, GOVERNMENT agrees to permit CONTRACTOR to
- i. obtain rights to allow the GOVERNMENT to continue to use the PEO DHMS IP pertaining to the third-party claim,
 - ii. modify it, or
 - iii. replace it with other PEO DHMS IP that is at least functionally equivalent to the PEO DHMS IP at issue. In cases where the PEO DHMS IP is modified or replaced, the GOVERNMENT shall be afforded a reasonable opportunity to transition to the modified/replacement PEO DHMS IP before discontinuing use of the PEO DHMS IP pertaining to the third-party claim. After transitioning to the replacement PEO DHMS IP, the GOVERNMENT shall return the discontinued PEO DHMS IP to CONTRACTOR upon its written request to GOVERNMENT. CONTRACTOR and the GOVERNMENT will then promptly negotiate a fair refund to be paid to the GOVERNMENT.
- f. The GOVERNMENT represents that it shall require recipients to execute the non-disclosure agreement specified at DFARS RFO Class Deviation 227.7103-7, Use and Non-Disclosure Agreement (NDA), or that the recipient, if a contractor, has DFARS RFO Class Deviation 252.227-7994 Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends incorporated into its contract, before disclosing any PEO DHMS IP to a recipient outside of GOVERNMENT. A copy of the executed NDA shall be provided to CONTRACTOR. The NDA shall name the CONTRACTOR as a third-party beneficiary, to provide the CONTRACTOR an opportunity to enforce the NDA, if needed.

VIII. Delivery.

Ordering and Delivery Requirement.

The GOVERNMENT shall make all reasonable efforts to specify what PEO DHMS IP is required to be delivered at the award of each modification. However, because of the complexity of the procurement, the GOVERNMENT cannot be certain that it has ordered all PEO DHMS IP that is needed for PEO DHMS Purposes. Therefore, the parties agree that execution of the CONTRACT constitutes a GOVERNMENT ordering of PEO DHMS IP and a request for delivery of PEO DHMS IP by the Government, but only for purposes of satisfying the FAR/DFARS formalities so that the SNLR in the PEO DHMS IP vest in the GOVERNMENT. The actual delivery requirements, procedures (access, transfer, etc.) and timetables shall be in accordance with the CONTRACT.

IX. General.

a. Integration and Order of Precedence.

This AGREEMENT is part of the CONTRACT, and together they shall be the entire agreement between the parties in relation to the PEO DHMS IP, to the exclusion of all antecedent or present representations, undertakings, agreements, or warranties, express or implied. In case of conflicts between the AGREEMENT and another part of the CONTRACT, the CONTRACT Order of Precedence clause shall govern whether the AGREEMENT or the CONTRACT shall take precedence.

b. Failures and Omissions.

A failure or omission by either party to enforce any remedy for any breach of any term or condition of this AGREEMENT shall not be construed as a waiver of such term or conditions.

c. Assignment, Sublicensing and Transfer.

This AGREEMENT shall not be assigned, sublicensed nor transferred by CONTRACTOR without prior written agreement of GOVERNMENT. The CONTRACTOR shall flow down the requirements of this agreement to all subcontractors.

d. Articles, Sections and Paragraphs.

The division of this AGREEMENT into articles, sections, and/or paragraphs and the insertion of paragraph headings are for convenience of reference only and shall not affect the construction or interpretation of the terms of this AGREEMENT.

e. Amendments and Modifications.

No amendments to or modifications of this AGREEMENT shall be effective unless reduced to writing and executed by the Parties hereto.

f. No Endorsement.

THIS AGREEMENT DOES NOT IN ANY MANNER CONSTITUTE AN ENDORSEMENT BY GOVERNMENT OF ANY RESULTS, RESULTING DESIGNS, HARDWARE, SOFTWARE OR ANY OTHER APPLICATIONS RESULTING FROM THE USE OF PEO DHMS IP UNDER THIS AGREEMENT. THIS AGREEMENT DOES NOT OBLIGATE THE GOVERNMENT IN ANY WAY, SHAPE OR FORM TO AWARD FUTURE PROCUREMENTS TO CONTRACTOR.

g. Choice of Law.

This AGREEMENT is subject solely to United States Federal law for all purposes, including, but not limited to, jurisdiction and venue, determining the validity of this AGREEMENT, the meaning of its provisions, and the rights, obligations, and remedies of the parties.

h. CONTRACTOR Contractual Obligations.

Nothing in this AGREEMENT excuses or relieves CONTRACTOR from its performance of any contractual requirements with or contractual obligation to GOVERNMENT that is beyond the scope of this AGREEMENT.

i. Technical Data/Computer Software Classification.

j. GOVERNMENT and CONTRACTOR agree that PEO DHMS IP associated with training as defined in section I is necessary for training on PEO DHMS, and as such is classified as Operations, Maintenance, Installation and Training IP.

(END)

ADDENDUM 5 - Software Licensing and Software Maintenance

I. Definitions:

Unless otherwise specified in this addendum, the terms used in this addendum are defined in the RFO and DFARS RFO Class Deviation, as applicable.

a. Authorized end-users - Government and non-Government personnel authorized by the Government to use a system, including partner personnel from other Government Agencies, or private sector partners.

b. Cloud Computing - As defined in DFARS RFO Class Deviation 252.239-7010, means a model for enabling ubiquitous, convenient, on-demand network access to a shared pool of configurable computing resources (e.g., networks, servers, storage, applications, and services) that can be rapidly provisioned and released with minimal management effort or service provider interaction. This includes other commercial terms, such as on-demand self-service, broad network access, resource pooling, rapid elasticity, and measured service. It also includes commercial offerings for software-as-a-service, infrastructure-as-a-service, and platform-as-a-service.

c. Enterprise - All authorized end-users; facilities; platforms; and all infrastructure (including hardware, underlying frameworks for providing Cloud Computing Services) required to operate an IT system in accordance with the contract.

d. Enterprise Software - At a minimum, any software and database management systems (DBMSs) developed by the performer at its expense, including that provided on an "as-a-service" or subscription basis. Also includes any other software the contractor proposes to deliver on an enterprise basis prior to delivery.

e. Non-Enterprise Software - Software not covered under the definition of "Enterprise Software," such as third-party commercial off-the-shelf software.

f. Software Maintenance - Includes all releases of the software such as major releases, minor releases, maintenance releases, patches, cybersecurity, and software assurance updates required by this contract.

g. Third-Party Content - Non-organization specific data, which requires Enterprise Software or Non-Enterprise Software for delivery under the agreement, but which is not owned by the Enterprise Software or Non-Enterprise Software vendor. Third-Party Content can include, but is not limited to, data or subscriptions to databases such as technology research databases, virtual or computer-based training, market research databases, business research databases, etc.

II. Enterprise Software Licenses.

The Enterprise Software was previously licensed on a perpetual, enterprise basis under the Agreement [N0003915D0044]. Consequently, the Government's actual enterprise will have continuous access to the software or software-as-a-service without any additional billing or costs. This licensing covers the entire enterprise, regardless of its future size.

For database management systems software falling within the Enterprise Software definition, the License Agreement may incorporate true-up terms. These terms account for any discrepancy between the licensed user count and the actual user count, subject to the following conditions:

a. The Prime contractor agrees to cover any additional costs resulting from a true-up, at no extra expense to the Government, throughout the duration of this contract. The Prime contractor will also report these costs to the Government during each true-up for planning purposes.

b. The user count tracking mechanism must be automated, impose no additional requirements on the Government, comply with cybersecurity and privacy standards outlined in the agreement, and be covered by the same License Agreement as the database management systems software (or by an agreement previously reviewed and approved by the Government before award). Additionally, the license agreement for this tracking mechanism must be transferable to the Government in accordance with paragraph f of this addendum.

c. Before transferring the License Agreement (as outlined in paragraph f), the Prime Contractor commits to performing a true-up and amending the License Agreement at no extra cost to the Government. This amendment reflects the actual user count if it exceeds the licensed user count.

d. The Prime Contractor submits a written agreement, which becomes part of an Attachment to the Contract upon award. This agreement aligns with conditions a-c if the license agreement includes true-up terms.

III. Non-Enterprise Software Licenses.

Software not covered under the definition of "Enterprise Software." Non-Enterprise Software is not required to be licensed in accordance with paragraph II of this addendum. However, all Non-Enterprise Software must be licensed in sufficient quantities to provide licensing for those Authorized End-Users within the Enterprise, as those terms are defined in section I. Definitions, that need to use such Non-Enterprise Software, regardless of their respective location or employment status.

IV. Term of License.

All enterprise licenses acquired under the contract will be perpetual licenses regardless of the expiration or termination of this contract or any lapses in maintenance.

V. Transferability.

All licenses will be transferable to the Government at no additional cost upon request of the Government with sixty (60) days prior notice. Unless otherwise specified by the Government, the contractor will transfer all licenses to the Government sixty (60) days prior to final expiration of this contract. Unless otherwise agreed to in writing by the Contracting Officer, the transferred license agreements shall include the same terms as those in the license agreements that have been reviewed by the Government pre-award and incorporated as an attachment to the contract at award. Any other license terms must be asserted in accordance with the post-award procedures in Addendum 4 or paragraph I of Addendum 2 for Cloud Computing Services agreements.

VI. Software Maintenance and Version Support.

Software maintenance will cover the actual enterprise during the term of the Contract.

VII. External Capabilities.

The Government may, during performance of this contract, purchase external commercial off-the-shelf software or software-as-a-service either from the contractor or a third-party vendor to enable a desired future capability. The contractor will provide all integration and engineering services necessary to integrate the external capability into the DHMS solution if required.

VIII. Existing Enterprise Software Agreements.

The contractor is authorized to order from existing Department of Defense Enterprise Software Initiative (DoD ESI), Enterprise Software Agreements (ESAs), Department of the Navy (DON) Enterprise Software Licensing (ESL) Agreements, or Federal Strategic Sourcing Initiative SmartBuy ESAs for the purpose of procuring / providing software licenses and software maintenance in the performance of this agreement. A list of existing DON ESL agreements will be provided by the Government post award. Prior to procuring any software in the performance of this agreement, the performer shall evaluate the pricing and license terms amongst existing DoD ESI, ESAs, and DON ESLs as compared to commercial sources/agreements, following the procedures set forth in DFARS 208.74, and procure the lowest-priced software licenses and software maintenance that are consistent with the terms and conditions of this agreement.

IX. Third-Party Content.

Third-Party Content must be provided in adequate quantities and with licenses that meet the Government's needs as outlined in section II, Enterprise Software Licenses, of this addendum. According to this section, Third-Party Content does not need to be licensed on a perpetual basis. It can be included as part of an Enterprise Software or Non-Enterprise Software license agreement, rather than being licensed separately. However, if the Third-Party Content is licensed separately, the license agreement must also comply with section V, Transferability, of this addendum.

X. Cloud Computing Services.

Cloud Computing Services must be licensed with terms and functionality that meet the Government's needs as specified in sections III and V of this addendum. The contractor may submit new or revised Cloud Computing Services agreements after the award, subject to approval by the Contracting Officer. These post-award agreements will be reviewed for compliance with Federal law, contract requirements, this addendum, DFARS RFO Class Deviation 252.239-7010, and any other applicable contract clauses. The contractor must provide all Cloud Computing Services agreements intended for use in performing this contract. All such agreements will be attached to this contract.

(END)

ADDENDUM 6 - Late Invoice/Voucher Submission

- I. The contractor must submit Invoice/Voucher within 30 days upon completing the service.
- II. Despite any other payment provisions in this contract, the government will process Invoice/Voucher payments according to the terms outlined in 52.232-25 (Prompt Payment).
- III. Failure to submit Invoice/Voucher within the specified timeframe may negatively affect the Contractor Performance Assessment Reporting System (CPARS) ratings.
- IV. If the contractor is unable to submit Invoice/Voucher on time, they must promptly notify the Contracting Officer's Representative (COR) in writing, explaining the reason for the delay and indicating the expected submission date.
- V. Invoice/Voucher not received as per the contract terms may be denied payment or subject to a claim.
- VI. The contractor should maintain a record of all outstanding Invoice/Voucher for quarterly reconciliation with the COR.

(END)

Contract Clauses**Additional Regulation or Supplemental Clauses Incorporated by Full Text****The following Clause(s) were added:****FAR Clauses Incorporated by Reference**

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.233-1	Disputes. (Deviation 2026-O0038) (Alternate I)	Feb 2026	Alternate I	Feb 2026

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.239-7018	Supply Chain Risk.	Dec 2022		

The following Clauses modifications were made:

52.204-13 System for Award Management-Maintenance. (Deviation 2026-O0038) Feb 2026

52.209-6 Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038) Feb 2026

52.209-9 Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation 2026-O0038) Feb 2026

52.209-10 Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038) Feb 2026
52.212-4 Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038) Feb 2026
52.216-22 Indefinite Quantity. (Deviation 2026-O0038) Feb 2026 hereby reads as follows:

INDEFINITE QUANTITY (FEB 2026) (DEVIATION 2026-O0038)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after ____ [insert date].

(End of clause)

52.222-19 Child Labor-Cooperation with Authorities and Remedies. (Deviation 2026-O0038) Mar 2026
Date Changed From: Feb 2026 To: Mar 2026

52.222-50 Combating Trafficking in Persons. (Deviation 2026-O0038) Feb 2026
52.233-3 Protest after Award. (Deviation 2026-O0038) Feb 2026
52.233-4 Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038) Feb 2026
52.240-91 Security Prohibitions and Exclusions. (Deviation 2026-O0038) Feb 2026
52.240-93 Basic Safeguarding of Covered Contractor Information Systems. (Deviation 2026-O0038) Feb 2026
52.244-6 Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038) Feb 2026

List of Attachments

The following Attachment(s) were added:

Exhibit A005 Transition-Out Plan CDRL
Performance Work Statement (PWS) Deployment Solutions

The following Attachment(s) were deleted:

Exhibit A005 Transition-Out Plan CDRL
PWS - Deployment Solutions

Representations, Certification, & Other Statements

Additional Regulation or Supplemental Clauses Incorporated by Full Text

The following Clause(s) were added:

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		

The following Clauses modifications were made:

52.240-90 Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038) Feb 2026

Instructions, Conditions, & Notices to Offerors or Quoters

Additional Regulation or Supplemental Clauses Incorporated by Full Text

The following Clauses modifications were made:

52.204-7 System for Award Management-Registration. (Deviation 2026-O0038) Feb 2026
52.212-1 Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038) (Tailored) Feb 2026 hereby reads as follows:

Instructions to Offerors-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

1.0 Solicitation Information

This solicitation seeks full and open competitive offers. The North American Industry Classification System (NAICS) code is delineated on the SF-1449 cover sheet (including NAICS and size standards).

The Government intends to award multiple award contracts to each and all qualifying offerors in response to the Program Executive Office - Defense Healthcare Management System (PEO DHMS) Deployment Solutions solicitation in accordance with 10 U.S.C. 3206(c) implemented by RFO 15.104(b)(1)(ii). Therefore, Price will not be an evaluation factor for this solicitation.

2.0 General Instructions

Points of Contact (POC): Below are the only points of contact for this solicitation. All questions or concerns shall be submitted to the Contracting Officer and Contract Specialist, using the submission instructions below. All proposal submissions shall be submitted using the instructions in Section 2.2 below. Service of protest to the Agency shall be submitted to the e-mail addresses below.

Table 1: Points of Contact

Name	Title	Email
Ms. Joyce Elaine Pace-Reed	Procuring Contracting Officer	joyce.e.pace-reed.civ@health.mil
Ms. Samantha Deluca	Contract Specialist	hailey.s.deluca.civ@health.mil

2.1. Instructions to Offerors**2.1.1 General Instructions**

- a. This section provides general guidance for preparing proposals as well as specific instructions on the format and content of the proposal. The offeror's proposal must include all data and information requested and must be submitted in accordance with these instructions. Non-conformance with these instructions and/or submittal of an incomplete package may result in an offer being considered unacceptable and the proposal may not be evaluated.
- b. Alternate proposals will not be accepted. If an Offeror (1) fails or refuses to assent to any of the terms and conditions of this request for proposal (RFP), (2) proposes additional terms or conditions, (3) conditions its proposal with assumptions or (4) fails to submit any of the information required by this solicitation, then the Government may consider the offer to be unacceptable and therefore ineligible for contract award.
- c. The proposal shall be clear, concise, and shall include sufficient detail for effective evaluation and for substantiating the validity of stated claims. Offerors shall assume the Government has no prior knowledge of its facilities and experience and will base its evaluation on the information presented in the offeror's proposal.
- d. Elaborate brochures or documentation, binding, detailed artwork, or other embellishments are unnecessary and are not desired. Do not include resumes.
- e. Proposals must not include classified information.
- f. All the requirements in the RFP are mandatory. Offerors' proposal submission represents that the firm will perform all the requirements specified in the solicitation.
- g. The Government may consider any failure to comply with these instructions to be indicative of what could be expected from an offeror during contract performance and may consider it a weakness of the proposal in the appropriate factors. Statements such as "will comply," "noted and understood," "in accordance with best/industry practices/standards," etc., without supporting narrative are not acceptable. Cursory responses or responses that merely reiterate or paraphrase the solicitation language, or other information provided by the Government, will not be considered to satisfy the requirements of the solicitation.

Note: Throughout the RFP documents, unless otherwise specified, reference to days will mean calendar days, not business days. In accordance with RFO 4.309(a)(1) the Government will retain its copy of all unsuccessful proposals.

2.1.2 System for Award Management (SAM).

Offerors will not be eligible to receive a contract award unless they are registered in SAM at the time of proposal submission and maintain an active record in SAM.

2.1.2.1 Contractor Teaming Arrangements & Joint Ventures

If an offeror is proposing under RFO Companion (FC) 9.000, where there is a joint venture or partnership, the combined entity shall be registered in SAM, and the SF-1449 must reflect the combined entity as the Prime.

Offerors shall provide Teaming Agreements in accordance with Volume III, Section 4.

2.2 Proposal Submission Instructions for Bidscale

Proposals must be submitted electronically via a secure online submission portal by **April 21, 2026 at 4:00 PM Eastern Time**. Bidscale aids the Government in evaluating acquisitions and reduces submission rounds through a structured submission process for proposal materials. The submission portal is a tool used solely to receive and evaluate proposals for this solicitation. Only Government signed documents, including evaluation reports and contracts are considered as the official record for contractual purposes.

1. Digital Submission Portal Access:

Offerors wishing to submit a proposal must first request a user account to access the digital submission portal. To request an account, please send an email to customersuccess@bidscale.com. The email must include the following information:

- a. Subject Line: Submission Portal Account Creation
- b. First Name
- c. Last Name
- d. Email Address

e. Company Name

f. Solicitation Name: PEO DHMS Deployment Solutions

Please allow at least 72 hours for account creation before the submission deadline. Once the account is created, offerors will receive a confirmation email with login instructions. Offerors may designate both a primary and backup user account. As a best practice, offerors are encouraged to use one user to complete the final submission to avoid partial uploads.

2. Upon successful account creation, proposals can be submitted through the link sent to the requesting user:

- a. Supported web browsers include Chrome, Edge, and Firefox.
- b. The proposals must follow the format and guidelines outlined in 52.212-1 of the solicitation document.
- c. All required documents and attachments must be included. Submissions not fully uploaded or submitted will not be considered.
- d. You are able to resubmit your proposal documents up until the above deadline.

3. Confirm receipt of a confirmation email for your submission

Upon submission, you will receive a confirmation email from Bidscale acknowledging receipt of your proposal. Bidscale is only authorized in a limited capacity to issue access to the submission portal and provide basic technical support with its utilization. If a confirmation email was not received or technical issues occur with the submission portal, contact Bidscale for assistance prior to the closing date and time at customersuccess@bidscale.com and copy the Contracting Officer and Contract Specialist at dha.ncr.co.mbx.cd-dhms-contracting@health.mil. Offerors are responsible for completing proposal submissions before the closing date and time; therefore, early submissions are encouraged.

4. Evaluation:

The Government reserves the right to utilize artificial intelligence (AI) tools to collect, summarize, and compile proposal and/or evaluation information during the evaluation process. AI tools will be used solely as an administrative aid. All evaluation judgments and source selection decisions will be made by Government personnel.

5. Disclaimer:

Proprietary information submitted in response to this solicitation will be protected from unauthorized disclosure as required by Subsection 27 of the Office of Procurement Policy Act as amended (41 U.S.C.423) (hereinafter referred to as "the Act") as implemented in the FAR. These companies are bound contractually by Organizational Conflict of Interest and disclosure clauses with respect to proprietary information. Contractor personnel will take all necessary action to preclude unauthorized use or disclosure of an offeror's proprietary data.

The exclusive responsibility for source selection will reside with the Government.

The procuring Contracting Officer is the sole POC to offerors any proposal related questions. Bidscale is not authorized to address any issues/questions related to contractor proposal submissions. Offerors are encouraged to review all instructions carefully and ensure full compliance with all requests for proposal requirements to avoid any disqualification.

2.3 Communications and Solicitation Question Instructions

Communications between the Government and offerors will be controlled by the Contracting Officer and Contract Specialist. Offerors must submit all written proposal information via Bidscale Portal.

Solicitation questions must be submitted to the Contract Specialist attention via email dha.ncr.co.mbx.cd-dhms-contracting@health.mil. Solicitation questions must be submitted no later than **April 9, 2026 at 12:00 PM Eastern Time**. Questions provided using different means will not be considered. The Government will provide a response to the questions via SAM.gov. Responses may or may not require an amendment. Offerors are responsible to monitor SAM.gov for the most recent information for this solicitation.

Note: Questions specifics to revisions made in either **Amendment 0001 or Amendment 0002** must be submitted to the Contract Specialist attention via email dha.ncr.co.mbx.cd-dhms-contracting@health.mil. no later than **April 15, 2026 at 4:00 PM Eastern Time**. Questions submitted in a different manner, submitted late, and/or not related to a revision made in either Amendment 0001 or Amendment 0002 will not be considered.

2.3.1 Discussions

The Government will provide awards to all technically acceptable proposals. The Government intends to award without discussions or establishment of a competitive range; however, the Government reserves the right to hold discussions. If, during the evaluation period, it is determined to be in the best interest of the Government to hold discussions, offeror responses to Evaluation Notices (ENs) and the Final Proposal Revision (FPR) will be considered in making the source selection decision.

As the Government does not intend to hold discussions, offerors are advised to submit initial proposals that are well defined and clearly acceptable without additional information or substitute pages. Further, initial proposals should contain the offeror's best terms rather than relying on the potential for future negotiations.

2.3.2 Clarifications

Offerors may be given the opportunity to clarify certain aspects of the proposal or resolve minor or clerical errors. Such clarifications shall not be considered discussions. Offerors will not be given an opportunity to respond to any identified weaknesses or deficiencies or revise their proposals.

2.4 Amendments to Solicitation

If this RFP is amended, all terms and conditions that are not amended remain unchanged. Offerors shall acknowledge receipt of any amendment to this request by the day and time specified in the amendment(s).

2.5 Period of Acceptance of Offers

The offeror agrees to hold its proposal firm for 180 calendar days from the date specified for receipt of offers.

2.6 Discrepancies

If an offeror believes that the requirements in these instructions contain an error, omission, or are otherwise unsound, the offeror shall immediately notify the Contracting Officer in writing via e-mail with supporting rationale as well as the remedies the offeror is asking the Contracting Officer to consider as related to the omission or error.

3.0 Proposal Content

The purpose of these instructions is to prescribe the format of proposals and describe the approach for the development and presentation of proposal information. Proposals shall be submitted in accordance with these instructions or will be considered non-compliant.

3.1 Page Limitations

All proposals must comply with the page limitations identified in the applicable tables below. Page limitations shall be treated as maximums. If exceeded, the excess pages will not be read or considered in the evaluation of the proposal. Title pages, cover pages, tables of contents, tab indexing, glossaries, and lists of tables and figures are not included in page limitations. Legible tables, charts, graphs, diagrams, graphics, and figures may be used to depict organizations, systems and layout, implementation schedules, plans, etc., when described under specific factors below. The use of tables, charts, graphs, diagrams, graphics and figures count as part of the page limits identified in Table 2 below.

3.2 Page Size and Format for Written Proposal Submission

A page is defined as one 8.5" x 11" electronic page with 0.5" margins and no smaller than a 10-point font size. The font shall be Times New Roman. NOTE: The font size limitation applies to all narrative elements, graphics, art, figures, imported charts, charts, and any other graphical representation that includes text (font type can be varied depending on the medium). Pages shall be numbered sequentially by volume. Pages shall include line numbering to support review and applies to all Volumes.

3.3 Title Page (not included in the page count)

Each volume must include a title page. The title pages must show:

- Solicitation Number, and
- Name, address, telephone numbers and e-mail address of the offeror

3.4 Cross-Referencing

The proposal volumes shall be written on a stand-alone basis so that its contents may be evaluated without cross-referencing to another volume. Information required for proposal evaluation which is not found in its designated volume will be assumed to have been omitted from the proposal.

3.5 Indexing

Each volume shall contain a detailed Table of Contents to delineate the subparagraphs within that volume. Tab indexing shall be used to identify sections and will not count against page limitations IAW paragraph 3.1.

3.6 Glossary of Abbreviations and Acronyms

Each volume shall contain a glossary of all abbreviations and acronyms used, with an explanation for each. As stated above in paragraph 3.1, glossaries do not count against the page limitations for their respective volumes.

3.7 Compliant

Documents submitted in response to this solicitation must be fully compliant to and consistent with the terms and conditions of the solicitation or may result in being rejected as noncompliant and not being evaluated.

4.0 Proposal Instructions

Table 2 provides a list of each volume, documents, file type, maximum page limits, and file formats.

Table 2: Proposal Volumes

ITEM	ELECTRONIC FILE NAME	FILE TYPE	PAGE LIMITS
Volume I: Factor 1 - Challenge Scenario 1a	OfferorName_Factor1_ChallengeScenario1a	.pdf	10
Volume I: Factor 1 - Challenge Scenario 1b	OfferorName_Factor1_ChallengeScenario1b	.pdf	10
Volume II: Factor 2 - Supply Chain Risk Management Plan	OfferorName_Factor2_Supply Chain	.pdf	3

Volume III: Contract Documents			
Section 1: Cover Letter	OfferorName_CoverLetter	.pdf	1
Section 2: Organizational Conflict of Interest (OCI) Declaration and Disclosure	OfferorName_OCI	.pdf	UNL
Section 3: Support Contractor Proposal Access Consent Statement	Included in Cover Letter	N/A	N/A
Section 4: Teaming Agreements	OfferorName_TeamingAgreements	.pdf	UNL
Section 5: Pre-Award Identification and Assertion of Restrictions on Commercial Technical Data and Commercial Computer Software	OfferorName_Pre-AwardAssertions	.pdf	UNL
Section 6: Representation, Certification, & Other Statements	OfferorName_RepsAndCerts	.pdf	UNL

*NOTE: Volumes shall consist of the information specified for each evaluation factor listed below. All documents shall be searchable and capable of using highlights and comment boxes. **File size shall not exceed 1.5 GB per file. No pricing information shall be included in Volumes I, II, and III.***

FACTOR 1: CHALLENGE SCENARIO

Offerors shall provide a (1) proposed Deployment Approach (A003) (Volume 1: Factor 1 - Challenge Scenario 1a) as well as a (2) proposed Deployment Approach (A003) (Volume 1: Factor 1 - Challenge Scenario 1b) based on both of the following scenarios.

The Program Executive Office Defense Healthcare Management Systems (PEO DHMS) is modernizing its global healthcare capabilities, which includes the multi-faceted deployment of DHMS products (Federal Electronic Health Record (EHR) and Operational Medicine (OpMed)). The objective is to create a secure, seamless, and interoperable health information ecosystem that supports warfighters from the point of injury in austere, forward-deployed locations to definitive care.

Offerors shall propose an innovative and scalable deployment plan addressing two interconnected lines of effort as outlined below. The proposed approach shall address hardware and/or component installation and configuration across various networks, continuous patient data access, and comprehensive user training tailored to the operational environment and a diverse user audience. Additionally, the plan shall incorporate proactive risk mitigation strategies to address deployment complexities and ensure mission success. Offerors shall document any assumptions made within their proposed approach.

1a) Federal EHR product modernization and deployment: This effort focuses on the full implementation of the Federal EHR at established, high-capacity treatment facilities.

Scope:

- One large accredited Outside Continental U.S. (OCONUS) medical center (250 beds), including two community hospitals (125 beds) and five associated out-patient clinics spread across multiple time zones with approximately 5,000 total users that includes foreign national employees and 50,000 beneficiaries.
- Services: Full-spectrum healthcare services are in scope, including inpatient, outpatient, acute, ambulatory, specialty, and dental care. This also includes all associated Revenue Cycle services such as billing, patient accounting, and referral management.
- Technical Environment: The solution must be integrated with a complex array of hardware, including medical devices and IT systems that require real-time, secure data exchange.

1b) OpMed products' modernization and deployment: This effort delivers mobile and interoperable OpMed solutions to medical forces in deployed and tactical environments in both the Continental U.S. (CONUS) and OCONUS. This includes theater hospitals, hospital ships, forward resuscitative sites, and submarines. These scalable deployments can occur concurrently across multiple sites, countries, or theaters, in remote or austere environments with each location receiving one or more products tailored to mission requirements. The deployment includes the OpMed product suite: Battlefield Assisted Trauma Distributed Observation Kit-Joint (BATDOK-J), Operational Medicine Care Delivery Platform (OpMed CDP), Theater Blood-Mobile (TBLD-M), and Medical Hub (MedHub).

Scope:

- Rapidly deploy globally to no less than five sites/units simultaneously across forward-deployed locations managed by multiple Services in EUCOM and INDOPACOM (Role 1-3) with uncertain schedule and complex infrastructure. This includes deployments from Naval vessels and field hospitals to forward resuscitative and enroute care teams.
- Services & Interoperability: Full-spectrum healthcare services are in scope, including ambulatory care, emergency trauma, surgical stabilization, enroute care, behavioral health, forward resuscitative, ancillary services (pharmacy, lab, imaging), and blood inventory and management. A critical requirement is ensuring seamless data transmission through all roles of care and aggregating medical data for Command and Control Situational Awareness (C2SA) reporting.
- Technical Environment: The plan will address integration with complex Service-specific hardware and diverse Service networks for low-to-no-touch deployments, where the products may be remotely deployed and/or trained to the field in a disconnected, intermittent, and low-bandwidth (DIL) environment.

Note: For the purposes of the Challenge Scenario, the following terms are defined.

- Innovative: A new or significantly improved technology, process, or method as of the date of the submission of the proposal.
- Scalable: Resources can be quickly scaled up or down to match demand.
- Feasible: The ability to achieve deployment with the available resources, technology, time, and schedule. It is a pragmatic assessment of whether an idea can be successfully executed in the real world, while actively minimizing risk.
- Coherent: The approach is logical and understandable.

FACTOR 2: SUPPLY CHAIN RISK MANAGEMENT PLAN

In accordance with DFARS RFO Class Deviation 212.203, offerors shall submit a Supply Chain Risk Management Plan (Volume II). The plan must describe processes for identifying, assessing, and mitigating supply chain risks associated with hardware, software, and firmware, and confirm compliance with applicable DFARS 252.239-7017, DFARS 252.239-7018, FAR 52.204-8 Deviation, 52.240-90, and 52.240-91 requirements.

VOLUME III: CONTRACT DOCUMENTS

(1) Cover Letter

The Offeror's proposal shall include a cover letter on the Offeror's letterhead stationery and signed by an executive of the company who possesses authority to bind the Offeror contractually. The cover letter shall acknowledge receipt of all amendments (if any are issued) to the RFP and include signed copies of the SF 30. The submittal letter shall identify all enclosures being transmitted as part of the response to the RFP. The letter shall reference the RFP number and acknowledge that the Offeror is submitting an offer in response to the RFP. It shall state: (1) Commercial and Government Entity (CAGE) number, (2) Unique Entity Identifier (UEI), (3) Taxpayer Identification Number (TIN), (4) a statement that the proposal is **valid 180 calendar days from the date specified for receipt of offers**, (5) provide support contractor proposal access consent (see (3) Support Contractor Proposal Access Consent below), and (6) include a statement clarifying the extent to which AI was or was not used in preparation of the proposal.

(2) Organizational Conflict of Interest (OCI) Declaration and Disclosure

Offerors shall complete and submit Attachment 16, OCI Declaration and Disclosure, Notice of Organizational Conflict of Interest. In addition, the Offeror shall provide a complete list of all team members (including all subcontractors at all tiers) so the Government may perform an independent OCI assessment. In accordance with RFO 9.504, the Contracting Officer may withhold award from any Offeror when a conflict of interest is determined to exist that cannot be avoided or mitigated.

(3) Support Contractor Proposal Access Consent

Contractor support personnel from the below listed companies under existing PEO DHMS contracts will be used for administrative purposes only. This assistance will not include analyzing or evaluating proposals.

Table 3: Contractor Support Personnel - Administrative

Company	POC	Contact Information
Unison Global (aka Bidscale)	Ben Ro	ben.ro@unisonglobal.com
Unison Global (aka Bidscale)	Kelsey Fryling	kelsey.fryling@unisonglobal.com

Proprietary information submitted in response to this solicitation will be protected from unauthorized disclosure as required by Subsection 27 of the Office of Procurement Policy Act as amended (41 U.S.C. 423) (hereinafter referred to as "the Act") as implemented in the FAR. Contractor Support Personnel are bound contractually by Organizational Conflict of Interest and disclosure clauses with respect to proprietary information. Contractor personnel will take all necessary action to preclude unauthorized use or disclosure of an Offeror's proprietary data.

The offeror's Cover Letter (Volume III Section 1) to this solicitation MUST clearly state permission is granted allowing the contractor support identified above access to the contractor's proposal. Subcontractors that provide proposal information separate from the Prime contractor's proposal submittal shall clearly state permission is granted allowing the contractor support identified above access to the subcontractor's proposal in a cover letter or similar notification. The Offeror and its subcontractors may choose to execute a proposal access agreement with these support contractors. Failure to clearly state permission is granted for access to the contractor's proposal may result in the offer being deemed unacceptable and therefore ineligible for contract award.

The exclusive responsibility for source selection will reside with the Government.

(4) Teaming Agreements

Offerors shall include all executed Deployment Solutions teaming agreements. If an Offeror is proposing under RFO 9.104-3(c)(2), where there is a joint venture or partnership, the Government would expect that the combined entity be registered in SAM, and the contract document would reflect the combined entity as the Prime.

(5) Pre-Award Identification and Assertion of Restrictions on Commercial Technical Data and Commercial Computer Software

Offerors shall identify all commercial technical data, commercial computer software, and commercial computer software documentation in accordance with Addendum 3 - Pre-Award Identification and Assertion of Restrictions on Commercial Technical Data and Commercial Computer Software. The Government will consider this assertion as part of the offeror's responsibility.

(6) Representation, Certification, & Other Statements

The solicitation provides offerors Representation, Certification, & Other Statements. An offeror's current SAM record is preferred, and a submission is not required when the SAM record is current. Offeror shall submit requested representations and certifications only when missing from the SAM record.

(End of provision)

The following Clause(s) were deleted:

FAR Clauses Incorporated by Full Text

52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (Deviation) (Feb 2026)

NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (FEB 2026) (DEVIATION)

(a) Evaluation preference. (1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

- (i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and
- (ii) Otherwise successful offers from small business concerns.

(b) *Waiver of evaluation preference.* A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

☐ Offeror chooses to waive the evaluation preference.

(c) *Joint venture.* A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

Evaluation Factors for Award

Additional Regulation or Supplemental Clauses Incorporated by Full Text

The following Clauses modifications were made:

52.212-2 Evaluation-Commercial Products and Commercial Services. (Deviation 2026-O0038) (Tailored) Feb 2026 hereby reads as follows:

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

1.0 Basis for Contract Award

The Government intends to make an Indefinite Delivery, Indefinite Quantity (IDIQ) multiple award contract to each and all qualifying offerors as defined in RFO 2.201 whose offer conforms to the solicitation requirements and is determined to be a responsible offeror in accordance with RFO Part 9 - Contractor Qualifications. The Government will evaluate each proposal in accordance with the evaluation criteria. A proposal will be considered "Technically Acceptable" if it receives a rating of "Acceptable" in all evaluation factors below. A proposal that receives a rating of "Unacceptable" in any factor will be deemed technically unacceptable and ineligible for award, except as provided under Factor 1 (Challenge Scenario) with respect to the Challenge Scenarios 1a and 1b. For purposes of Factor 1 (Challenge Scenario), an offeror will be rated Acceptable if it receives an Acceptable rating in either Challenge Scenario 1a, Challenge Scenario 1b or both. Offerors that receive an Unacceptable rating in either 1a or 1b, yet receive an Acceptable rating in either 1a or 1b will remain eligible for award.

All awardees under this solicitation will be eligible to compete for any task order issued within the scope of this resulting IDIQ contract. The Government does not intend to establish pools, channels, or scope-based limitations on task order competition based on the Challenge Scenario evaluation results.

This source selection will be conducted in accordance with RFO Part 12, Acquisition of Commercial Products and Commercial Services and RFO Part 15, Contracting by Negotiation, as supplemented by the Defense Federal Acquisition Regulation Supplement (DFARS) or DFARS RFO Class Deviation as applicable. These regulations are available electronically at <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide>.

Note that the Government will not award a contract to an offeror whose team has an unmitigated organizational conflict of interest. Evaluation of an offeror's proposal will be based on the information presented in the proposal. Proposals which are unsubstantiated in terms of technical or schedule commitments, may be deemed to be reflective of an inherent lack of technical competence, or indicative of a failure to comprehend the complexity and risks of the proposed work and may be grounds for rejection of the proposal or may be considered a performance risk, impacting the rating under the applicable Factor.

The Government will not award contract(s) to offerors that do not provide acceptable documents as required in Volume III. Issues involving compliance or standards of responsibility may be resolved in clarifications with the process outlined at 52.212-1 paragraph 2.3.2 and will not trigger the requirement for discussions with all offerors. If the Government is unable to determine the offeror compliant in accordance with the solicitation, and responsible in accordance with RFO Part 9 - Contractor Qualifications, as applicable, the offer will be rejected.

2.0 Evaluation Factors

The following evaluation factors will be used to evaluate each proposal. Award will be made to each and all qualifying offerors whose proposals are determined to be Technically Acceptable and whose firms are determined to be responsible.

Factor 1: Challenge Scenario

Factor 2: Supply Chain Risk

Offerors rated with Unacceptable in any Factor will not be eligible for award. For clarity, if an offeror addresses Challenge Scenario 1a and 1b and receives an Acceptable in one scenario, however, receives an Unacceptable in the second scenario, the offeror is still technically acceptable in Factor 1 and will remain eligible for award.

FACTOR 1: CHALLENGE SCENARIO**Table 4: Factor 1 Challenge Scenario Acceptable/Unacceptable Ratings**

R a t i n g	Definition
A c c e p t a b l e	The proposal addresses all required minimum elements of the challenge scenario and presents a feasible, coherent, and scalable approach . The Government has a reasonable expectation of successful performance. Any identified risks are manageable and do not indicate unsuccessful performance is likely. Offerors must receive at least an Acceptable rating in either 1a or 1b to be considered Acceptable for this factor.
U n a c c e p t a b l e	Unacceptable The proposal fails to address one or more of the required minimum elements of the challenge scenario, contains material deficiencies, or presents performance risks that indicate unsuccessful performance is likely. Offerors who receive an Unacceptable rating in both 1a and 1b are considered Unacceptable for this factor.

The Government will conduct two separate evaluations of the offeror's proposed Deployment Approach (A003): one for Volume 1: Factor 1 - Challenge Scenario 1a and one for Volume 1: Factor 1 - Challenge Scenario 1b. To be rated Acceptable, the offeror's proposal must meet the following minimum requirements for each applicable sub-factor:

Sub-Factor 1: Program Management and Governance

The proposal must describe a program management and governance approach that:

1. Includes a framework for managing, monitoring, and controlling all activities described in the challenge scenario.
2. Addresses procedures for governance, risk management (identification, analysis, and mitigation), integrated scheduling, quality control, and stakeholder communication.
3. Addresses the unique management challenges of supporting concurrent deployments in fixed-facility (OCONUS medical center) (1a) or operational/expeditionary environments (1b).

Sub-Factor 2: Deployment and Integration

The proposal must describe a deployment and integration approach that:

1. Includes a methodology for site preparation and configuration (including data collection, migration, and integration).
2. Includes a methodology for ensuring ongoing compliance with accrediting agencies (as it applies to 1a).
3. Addresses integration with hardware, medical devices, and networks (as it applies to 1a).
4. Addresses integration with hardware, medical devices, and diverse Service-specific networks (as it applies to 1b).
5. Includes a methodology for deployment in disconnected, intermittent, and low-bandwidth (DIL) environments (as it applies to 1b).
6. Presents at least one option for a low-to-no-touch remote deployment for OpMed products (as it applies to 1b).

Sub-Factor 3: Continuity and Logistics

The proposal must describe a continuity and logistics approach that:

1. Addresses how the continuity of healthcare delivery documentation will be maintained during deployment to minimize disruption to patient care.
2. Addresses personnel travel requirements, including adherence to Status of Forces Agreements (SOFA) where applicable.
3. Includes a methodology for network integration of all required hardware (as it applies to 1a).

4. Includes a methodology for supply chain management (as it applies to 1a).
5. Includes a methodology for managing the procurement, delivery, and tracking of hardware (as it applies to 1a).

Sub-Factor 4: Training

The proposal must describe a training approach that:

1. Is scalable for a diverse user base across multiple time zones and locations.
2. Leverages existing curriculum.
3. Provides role-based training.
4. Includes methods for assessing user training performance and overall training effectiveness.
5. Protects Personally Identifiable Information (PII) and Protected Health Information (PHI).
6. Presents at least one option for 1a and three options for 1b for low-to-no-touch remote training delivery.

Sub-Factor 5: User Adoption and Change Management

The proposal must describe a user adoption and change management approach that:

1. Fosters and measures successful user adoption of the new product(s).
2. Details a methodology for proactive stakeholder engagement, strategic communications to drive user buy-in, and manage resistance to change.

The evaluation of Challenge Scenarios 1a and 1b is conducted solely to determine Factor 1 Acceptability at the IDIQ level and does not restrict task order competition eligibility.

FACTOR 2: SUPPLY CHAIN RISK MANAGEMENT PLAN

Table 5: Factor 2 Acceptable/Unacceptable Ratings

Rating	Definition
Acceptable	Proposal meets the minimum requirements of the solicitation.
Unacceptable	Proposal does not meet the minimum requirements of the solicitation.

The Government will evaluate the offeror's approach to mitigating supply chain risk for information technology supporting a covered system. To be rated Acceptable the offeror's proposal must meet the following minimum requirements provide a feasible and coherent approach to identify, assess, and mitigate supply chain risks associated with hardware, software, and firmware, and confirm compliance with DFARS 252.239-7017, DFARS 252.239-7018, FAR 52.204-8 Deviation, 52.240-90, and 52.240-91 requirements.

(End of Provision)